

**CHAPTER xlv.**

An Act to confer powers upon the Glen Bank Trustees and for other purposes. A.D. 1916.
[10th August 1916.]

WHEREAS an Act was passed in the forty-first year of the reign of King George the Third (herein referred to as "the Act of 1801") intituled "An Act for draining dividing allotting and inclosing Deeping Langtoft Baston Spalding Pinchbeck and Cowbit Commons within the parts of Kesteven and Holland in the county of Lincoln and also for draining Crowland Common or Goggushland certain lands and grounds in the parishes of Bourn and Thurlby adjoining or lying contiguous to the north bank of the River Glen and certain enclosed lands in Deeping Fen and in the parishes of Spalding and Pinchbeck adjoining to the said commons and lying between the Rivers Glen and Welland and also for rendering more effectual several Acts of Parliament heretofore passed for draining and preserving the several lands grounds and commons hereinbefore mentioned or certain parts thereof":

And whereas by the Act of 1801 (section 90) the general commissioners thereby appointed (and herein referred to as "the general commissioners") were authorised and required well and sufficiently to enlarge deepen and scour out the River Glen straighten the course thereof where necessary and enlarge and strengthen the banks of the said river from the reservoir to Kate's Bridge of such dimensions and in such manner as in the judgment of the said general commissioners should be requisite and necessary for the protection of the lands lying on each side thereof:

And whereas by the Act of 1801 (section 90) it was provided also that after the general commissioners should have completed the works thereby authorised the banks of the River

A.D. 1916. — Glen (except as thereafter mentioned) should be repaired supported maintained and upheld of such sufficient height and strength by such person or persons subject to such regulations orders directions and determinations as the general commissioners should in and by their award order direct or appoint and such person or persons should for ever have power to make rates upon the persons therein mentioned for the repair and preservation of the said works in such proportions as the general commissioners should in and by such award direct or appoint and that immediately after the election of such person or persons the powers of the general commissioners should cease :

And whereas it is also provided by the Act of 1801 (section 91) that such parts of the banks of the River Glen as were then supported and maintained by the Black Sluice Commissioners and the trustees of the Bourn Eau Navigation respectively should from and after the general commissioners had enlarged and strengthened the same as thereinbefore was directed be repaired maintained and supported by and at the costs and charges of the Black Sluice Commissioners and the trustees of the Bourn Eau Navigation and (section 92) certain powers were conferred upon the Black Sluice Commissioners with regard to the amendment enlargement or strengthening of certain other parts of the north bank of the River Glen between the reservoir and Pinchbeck Bars :

And whereas in accordance with such provisions an award was made by the general commissioners dated the 25th March 1819 and a body of trustees (in this Act called "the Glen Bank Trustees") were appointed or elected and they and their successors have since served as such Trustees but owing to changed circumstances the provisions contained in such award relating to their appointment or election are defective or unsuitable and their powers are ill-defined by the said Act and award and they have had difficulty in enforcing payment of the drainage rates imposed by the said Act and it is expedient that further powers should be conferred upon them as in this Act provided :

And whereas the general commissioners in and by their said award declared who should be liable to contribute to the cost of the repairs of the said banks except as aforesaid and to the other expenses incurred by the Glen Bank Trustees in carrying out the duties and obligations conferred upon them and the proportions in which such persons should be so liable :

And whereas for many years the persons so declared to be liable contributed to the repair support and maintenance of the said banks but some time since all the receiving books field books and plans which set out in detail the names of the persons liable to contribute to the upkeep of the said banks were lost or destroyed and many of such persons have taken advantage of this to decline to pay their contributions: A.D. 1916.

And whereas the onus of proof being upon the Glen Bank Trustees to show that the persons assessed to contributions were liable under the authority of the said award for the maintenance of the said banks and such Trustees being unable to do so without the said books and plans the collection of the taxes is in a condition of confusion and the arrears amount to a considerable sum:

And whereas the Glen Bank Trustees being unable to maintain the said banks in a state of efficiency unless all the persons liable to contribute their quota towards the expenses thereof are legally compelled so to do it is necessary that the area of taxation should be defined and that powers to levy taxes and recover the same should be conferred upon such Trustees:

And whereas it is desirable for the purposes of their undertaking that the Glen Bank Trustees should be empowered to borrow money to maintain the banks of the River Glen in case of unusual emergency and also for the costs of this application to Parliament and that other powers should be conferred upon such Trustees as in this Act mentioned:

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the River Glen Act 1916 and the Act of 1801 may be cited as the River Glen Act 1801. Short titles.

2. In this Act unless there be something in the subject or context repugnant to such construction— Interpretation.

The expression "the Glen Bank Trustees" means the Glen Bank Trustees constituted under the Act of 1801;

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The expression "the Deeping Fen Trustees" means the general works trustees for the Deeping Fen Drainage District constituted or acting under the Act of 1801 and the Deeping Fen Drainage Act 1856;

The expression "the River Glen Drainage District" includes the banks slopes slipes and cesses of the River Glen between the sluice at the reservoir in the parish of Surfleet and Kate's Bridge in the parish of Thurlby other than the parts of the banks slopes slipes and cesses repairable by or under the jurisdiction or control of the Black Sluice Commissioners and the Bourn Eau Navigation or either of them;

The expression "the Deeping Fen Drainage District" means and includes the drainage district for which the Deeping Fen Trustees act under or by virtue of the Act of 1801 and the Act of 1856;

The expression "the Black Sluice Commissioners" means the commissioners acting in the execution of the Black Sluice Drainage Act 1765 the Black Sluice Drainage Act 1770 the Black Sluice Drainage Act 1846 the Black Sluice Drainage Act 1849 the Black Sluice Drainage Act 1880 and any Act or Acts hereafter to be passed amending those Acts.

Limits of
Act.

3.—(1) The limits of this Act shall comprise and include such portions of the parishes of Baston Thurlby Bourne Pinchbeck and Surfleet as are shown on the signed map in this section referred to and also Crowland Common and the district of the Deeping Fen Drainage Trustees including the enclosed commons of Spalding and Deeping Fen between the Rivers Glen and Welland.

(2) The said limits are shown by a line edged red upon the map signed in triplicate by the Right Honourable the Viscount Hutchinson (Earl of Donoughmore) the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred and the said maps have been deposited in the Office of the Clerk of the Parliaments House of Lords in the Private Bill Office House of Commons and at the offices of the Glen Bank Trustees which maps are in this Act referred to as "the signed map."

(3) Copies of the map deposited at the offices of the Glen Bank Trustees in pursuance of this section and certified by the

clerk or clerks to the Glen Bank Trustees to be true copies shall be received in all courts of justice and elsewhere as *prima facie* evidence of the limits of this Act. A.D. 1916.

4. The Glen Bank Trustees may let either by public auction or private contract the grass and herbage growing and accruing in or upon any of the occupation roads or droveways or the banks erected thereon or other ground within the River Glen Drainage District belonging to or vested in the said Trustees to any persons willing to take the same for any term not exceeding three years or otherwise and upon the best rents and with under and subject to such conditions covenants provisions and agreements as may be agreed upon between the said Trustees and such lessees. Power to
lease herb-
age.

5.—(1) If any person for any purpose except for the repair and maintenance of the banks of the River Glen shall unload or cast out of any boat or from any cart or waggon or from any house warehouse or other building quay yard garden bank place or ground any ballast sand stones chalk rubbish filth gravel ashes or any other gross substance whatsoever into the River Glen so as to impede the flow of water therein he shall for every such offence be liable on conviction to a penalty not exceeding five pounds and if he shall not within fourteen days next after notice in writing in that behalf shall be given to him by the Glen Bank Trustees remove from the river such ballast sand stones chalk rubbish filth gravel ashes or other gross substance as aforesaid the Glen Bank Trustees may cause the same to be removed and may recover the charges and expenses thereof from such person as aforesaid. Penalty on
throwing
rubbish into
River Glen.

(2) Every person who shall at any time obstruct the Glen Bank Trustees or any person employed by them in the performance of anything which they are empowered to do under this section shall be liable on conviction to a penalty not exceeding five pounds for every such offence.

6. Every person who—

- (A) Sets or places any fishing-net eel-trap eel-leap or other device or thing in the River Glen or on the banks thereof so as to impede the flow of water;
- (B) Without the previous consent in writing of the Glen Bank Trustees lets any water from the River Glen into any private or other drains within the River Glen Drainage District unless in pursuance or

Penalty on
persons com-
mitting offer-
ces named.

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exercise of a right now vested in or enjoyed by any public authority or any person to take water out of the River Glen or of a grant or licence lawfully made or granted in that behalf by any such authority or person ;

shall be liable on conviction to a penalty not exceeding five pounds.

As to en-
croachments.

7. If any person shall without the consent of the Glen Bank Trustees make erect build or plant maintain or continue any building hedge stile gate or fence upon any of the banks of the River Glen or other property within the River Glen Drainage District vested in or belonging to the Glen Bank Trustees or shall not remove any such building hedge stile gate or fence after twenty-one days' notice in writing from the Glen Bank Trustees so to do shall have been given to him or left at his usual place of abode the Glen Bank Trustees may remove the same and recover from him the charges and expenses attending such removal.

Certain
offences in
relation to
banks.

8. If any person shall—

- (1) cut or dig any turves hods or cesses within the distance of sixty feet from any banks which are already made or shall be made and are repairable by the Glen Bank Trustees ; or
- (2) make any soak-dike or ditch or soak-griple within sixty feet from any such banks as aforesaid ; or
- (3) make construct or excavate any watering-place or places of access for cattle to drink in the River Glen ;

every such person shall be liable to a penalty not exceeding five pounds and if any act contravening the provisions of this section results in injury to or the choking up or obstruction of the River Glen the Glen Bank Trustees may require such person to repair or remove the injury choking up or obstruction and if such requisition is not complied with the Glen Bank Trustees may themselves execute the works necessary for complying with the same and the expenses consequent thereon shall be recoverable by the Glen Bank Trustees from such person in default.

For pro-
tection of
Postmaster-
General.

9. Nothing in this Act contained shall alter prejudice or affect any of the rights powers and authorities of the Postmaster-General under the provisions of the Telegraph Acts 1863 to 1915.

10.—(a) For the purpose of defraying the expenditure incurred by the Glen Bank Trustees in maintaining supporting and keeping in repair the banks of the River Glen other than the portions of the northern bank of the river now repaired maintained and supported by the Black Sluice Commissioners and the Bourn Eau Navigation or either of them and all other expenditure incurred by the Glen Bank Trustees in exercising and fulfilling their powers and duties under the Act of 1801 and this Act and any expenses of the Glen Bank Trustees incidental thereto the Glen Bank Trustees shall and they are hereby authorised to levy a drainage charge and to rate assess tax charge and levy the same in manner in this Act mentioned.

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Power to
levy drain-
age charge. †

(b) The Glen Bank Trustees shall at a meeting to be held in the month of June in each year make or cause to be made an estimate of the amount required in the ensuing year for the purpose of defraying such expenditure.

(c) They shall apportion assess tax and charge the amount of such estimate upon the under-mentioned lands and upon the Deeping Fen Trustees in the proportions following (namely):—

Lands in the parish of Thurlby	-	-	-	3—132nds
Lands in the parish of Baston	-	-	-	7—132nds
Lands of Jonathan Ward in the parishes of Bourne and Thurlby being the Bourne and Thurlby Fen Pastures	-	-	-	11—132nds
The Deeping Fen Trustees	-	-	-	37—132nds
Lands in the parish of Pinchbeck (other than the North and South Fens)	-	-	-	43—132nds
Lands in the parish of Surfleet	-	-	-	18—132nds
Lands formerly of John Presgrave and now of Charles Edward Andrew and Charles Campbell McLeod at Tongue End	-	-	-	1—132nd
Lands forming the Crowland Common	-	-	-	1—132nd
Lands forming the enclosed commons of Spalding and Deeping Fen	-	-	-	11—132nds

which lands and commons are for better identification thereof indicated upon the signed map by distinctive colouring.

(d) The sums assessed taxed or charged upon the Deeping Fen Trustees shall be recoverable by the Glen Bank Trustees from the Deeping Fen Trustees and the Deeping Fen Trustees

A.D. 1916. — may reimburse themselves the amounts paid by them by charging and levying the same upon the lands in the Deeping Fen Drainage District as part of their ordinary expenditure.

(e) The sums assessed taxed or charged as aforesaid other than the sums recoverable from the Deeping Fen Trustees shall be recoverable by the Glen Bank Trustees by means of an acre rate or tax charged upon the above-mentioned lands respectively such rate or tax to be an equal acre rate or tax as between all lands situate in the same parish.

(f) The order for every tax or assessment made under the powers of this section shall be entered in a book to be provided for that purpose and shall be certified by the Glen Bank Trustees and shall be open to the inspection of all persons taxed or liable to be taxed under this section without fee or reward and every such rate or tax shall be paid to such persons and at such times and places as the Glen Bank Trustees shall order or direct.

Recovery of
taxes.

11. Any tax made under the powers of this Act may be enforced by the same remedies as if the same were a general district rate levied under the powers of the Public Health Act 1875 and as if the Glen Bank Trustees were a local authority within the meaning of that Act or at the option of the Glen Bank Trustees by an action in any court of competent jurisdiction.

Form of
assessment.

12. Any taxation or assessment made by the Glen Bank Trustees under the provisions of this Act shall be in the form specified in the schedule to this Act or to the like effect.

Public notice
of assess-
ment of
taxes to be
given.

13. Public notice of the time and place appointed for the payment of any tax made in pursuance of this Act shall be given by advertising the same at least twenty-one days before the time appointed for payment thereof in some newspaper circulating in the district.

Drainage
taxes may be
retrospective
or prospec-
tive.

14. Any tax made in pursuance of this Act may be made prospectively in order to raise money to pay charges and expenses to be incurred during the current year or retrospectively in order to raise money to pay charges and expenses already incurred.

Taxes may
be amended.

15. Any tax made in pursuance of this Act may be amended by inserting therein the name of any person claiming and

entitled to have his name inserted or by inserting the name of any person who ought to have been assessed or by striking out the name of any person who ought not to have been assessed or by raising or reducing the sum at which any person has been assessed if it appears to the Glen Bank Trustees that he has been under-taxed or over-taxed or by making any other alteration which will make the tax conformable to the provisions of this Act and no such amendment shall be held to avoid the tax. Provided that an amended tax shall not be payable by any person the amount of whose tax is increased by the amendment or whose name is thereby newly inserted until seven days after notice of the amendment has been given to him.

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16. The production of the books purporting to contain any tax or assessment made under this Act shall without any other evidence whatever be received as *prima facie* evidence of the making and validity of the taxes mentioned therein.

Evidence of
taxes.

17. Where the name of any owner or occupier of any house or land liable to pay any tax under this Act is not known to the Glen Bank Trustees it shall be sufficient to assess and designate him in notices and other documents as "the owner" or "the occupier" of the house or land in respect of which he is assessed without further description.

Description
of owner or
occupier.

18. Every tenant or occupier of any lands assessed or taxed or liable to any tax levied by the Glen Bank Trustees is hereby required to pay all and every such sum or sums of money as shall be from time to time assessed taxed or charged on or for or in respect of such lands in his tenancy or occupation in respect of any such tax and shall be entitled to deduct from any rent at any time payable by him to the owner of such lands the amounts so paid by him in respect of such taxes. Provided that no greater sum shall be recovered at any one time from any tenant or occupier (who is not at the same time the owner) than the amount of rent owing by him or which shall have accrued due from him subsequent to the service of a notice upon him to pay the tax but no tenant or occupier shall be entitled to the benefit of this proviso unless he shall on demand by the clerk or other person appointed by the Glen Bank Trustees produce to him the receipt for the last payment of rent made by such tenant or occupier or if he shall not have paid any rent give true and full information to such clerk or other person as

Tenants and
occupiers to
pay rates
and to deduct
them from
rents.

A.D. 1916. — to the rent at which he holds and the times at which the same becomes payable and the amount of rent (if any) owing by him And provided further that nothing in this section contained shall extend to abrogate any existing lease or agreement or be deemed to alter the incidence of burdens as between landlord and tenant under any such existing lease or agreement.

Demand
note.

19. Notice of every tax imposed by the Glen Bank Trustees shall be given as soon as may be to every occupier liable to the tax and every such notice shall state the period for which the tax is to be levied the total amount payable the time at which (not being less than twenty-one days from the date of the order imposing the tax) and the persons to whom payment is to be made.

Owners of
unoccupied
property to
pay tax.

20. When any lands in respect of which the occupier if such lands were occupied would be liable to pay any tax made under the provisions of this Act shall be unoccupied at the time of making such tax the Glen Bank Trustees may recover the amount of such tax from the owner of such unoccupied premises and every such owner shall pay the amount of such tax.

Power to
Trustees to
borrow on
mortgage.

21. The Glen Bank Trustees may borrow on mortgage of their general revenue any sums not exceeding the sum of five thousand pounds for any extraordinary purposes which may be rendered necessary in connexion with the repair and upholding of the banks of the River Glen and any sums that may be necessary for paying the costs charges and expenses of this Act and every mortgage deed shall be under the hands and seals of at least three of the Glen Bank Trustees and the Trustees may pay off any sums so borrowed and re-borrow the same or may re-borrow for the purpose of paying off any sums so borrowed.

Consent of
Treasury to
borrowing
during war.

22. Notwithstanding anything in this Act the Glen Bank Trustees shall not under the powers of this Act raise or borrow any money (other than moneys borrowed for payment of the costs charges and expenses of obtaining this Act) during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

As to repay-
ment of
borrowed
money.

23. All moneys borrowed by the Glen Bank Trustees under the authority of this Act shall be paid off within sixty years from the date or dates of borrowing the same Provided that any money borrowed for the costs charges and expenses of this Act shall be paid off within five years from the passing of this Act.

24. The Glen Bank Trustees shall pay off all moneys borrowed by them on mortgage under the powers of this Act by equal yearly or half-yearly instalments of principal or of principal and interest combined and the payment of the first instalment shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

A.D. 1916.
Mode of
payment off
of money
borrowed.

25.—(1) Any mortgagee of the Glen Bank Trustees by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver provided that such payment is six months in arrear.

Appoint-
ment of
receiver.

The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

26. A person lending money to the Glen Bank Trustees shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss mis-application or non-application of the money lent or of any part thereof.

Protection of
lenders from
inquiry.

27. The Glen Bank Trustees shall not be bound to see to the execution of any trust whether express or implied or constructive to which any loan or security for loan given by them under the authority of this Act may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages shall from time to time be sufficient discharge to the Glen Bank Trustees in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Glen Bank Trustees have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register and the Glen Bank Trustees shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss mis-application or non-application of any such money.

Trustees not
to regard
trusts.

A.D. 1916.

Amendment
of award of
1819.

28. The award dated the 25th March 1819 made under the Act of 1801 shall be read and construed so that the number of the Glen Bank Trustees to be appointed thereunder shall be five of whom one only shall represent the several parishes of Baston Thurlby and Bourn and that on the death resignation or disqualification of the present member the owners or proprietors for the time being of ten acres of land charged or chargeable to the reparation and support of the banks of the River Glen in the said several parishes of Baston Thurlby and Bourn or a majority of such owners or proprietors present at any meeting to be held within the parish of Baston aforesaid and to be convened for this purpose by notice in writing under the hands of any three of such owners or proprietors as aforesaid to be affixed on the principal door of the churches of Baston Thurlby and Bourn aforesaid during divine service on the two Sundays immediately preceding such meeting shall elect or appoint one trustee only as a member of the Glen Bank Trustees representing those parishes.

Recovery of
penalties &c.

29. All penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Application
of penalties.

30. All penalties and forfeitures which under the provisions of this Act shall become payable by any person on the prosecution of the Glen Bank Trustees shall be awarded and paid over to the Glen Bank Trustees and shall be by them applied for the purposes of this Act.

Audit of
accounts.

31. The accounts of the Glen Bank Trustees shall be audited by an accountant to be appointed by the Board of Agriculture and Fisheries at such salary and upon such terms and conditions as the Glen Bank Trustees may think fit.

Authentica-
tion of
notices.

32. Where any notice or demand under this Act requires authentication by the Glen Bank Trustees the signature of the clerk or clerks or other duly authorised officer of the Glen Bank Trustees shall be sufficient authentication.

Service of
notices.

33. Notices orders summonses and any other documents required or authorised to be served under this Act may be served by post or by delivering the same to or at the residence of the person to whom they are respectively addressed or where

addressed to the owner or occupier of premises by delivering the same or a true copy thereof to some person on the premises or if there is no person on the premises who can be so served by fixing the same on some conspicuous part of the premises. A.D. 1916.

34. Proceedings for recovery of any demand made under the authority of this Act whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

35. Nothing in this Act contained shall repeal invalidate lessen alter prejudice or take away any of the rights powers privileges or authorities of the Black Sluice Commissioners which shall continue as fully and effectually to all intents and purposes as if this Act had not been passed. Saving for Black Sluice Commissioners.

36. The provisions of the sections of this Act the marginal notes whereof are hereunder mentioned shall not apply to the Great Northern Railway Company or the Great Eastern Railway Company or the joint committee of those companies or the Midland and Great Northern Railways Joint Committee or to the properties of any of the said companies or committees:— Saving for railway companies.

“Penalty on persons committing offences named”;

“As to encroachments”;

“Certain offences in relation to banks.”

37. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown rights.

38. The costs charges and expenses of and incidental to the applying for obtaining and passing of this Act or otherwise in relation thereto (including the costs of and in connexion with the promotion of the River Glen Improvement Bill 1915) as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Glen Bank Trustees out of any of their funds or revenues or out of money borrowed for that purpose. Expenses of Act.

A.D. 1916.

SCHEDULE referred to in the foregoing Act.

FORM OF ASSESSMENT.

The Glen Bank Trustees acting under the River Glen Act 1916 do hereby assess tax and charge the lands mentioned in the annexed book and in such book distinguished by the numbers by which the same lands are distinguished on the 25-inch Ordnance map of the county of Lincoln and being within the parish of _____ and the respective owners and occupiers of the said lands whose names are mentioned in each page of the said book with the sum of _____

for every acre of the said lands set down in each page of the said book against the names of such owners and occupiers and so in proportion for any greater or less quantity than an acre And the Glen Bank Trustees order and direct that the tax hereby imposed shall be deemed a general drainage tax and shall be paid to Mr. the collector appointed by the Trustees to receive the same at the following places (viz.):—

on the _____ day of _____ next between the hours
of twelve noon and three in the afternoon of such days respectively.

FORM OF TAXATION.

Occupier.	Owner.	Parish.	No. on Map.	Description.	Quantity.	Amount of Tax.

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